

Ramesh Chand Gola v. State of U.P.

Allahabad High Court · Division Bench · 10 September 2020 · WRIT - C No. - 13744 of 2020 · **Writ disposed of; relegated to cl. 6.5; coercive action stayed 7 weeks.**

HEADNOTE

A writ raising a dispute as to the correctness of an electricity bill is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy. The petitioner may approach the appropriate authority within two weeks with a certified copy of the order; that authority shall consider and decide the application by a reasoned speaking order within four weeks after hearing. Coercive action is stayed for seven weeks.

FACTUAL SUMMARY

Ramesh Chand Gola approached the Allahabad High Court by writ, seeking a mandamus that the electricity authorities not harass him and that respondent no. 2 decide his representation dated 28 January 2020 within a time fixed by the Court. The grievance was the correctness of an electricity bill raised against him. Counsel for the petitioner and Sri Baleshwar Chaturvedi for the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-statutory-remedy

HOLDING

A writ petition raising a dispute as to the correctness of an electricity bill is not to be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy. The consumer may approach the appropriate authority, which shall consider and decide the application by a reasoned speaking order after hearing. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill Bill-correctness dispute relegated to the Clause 6.5 statutory remedy; writ not entertained on the merits of the bill. ¶ 1

clause-6.5-statutory-remedy Writ declined because of availability of the statutory remedy under Clause 6.5 of the Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL RAISED AGAINST THE PETITIONER

Left to the Clause 6.5 authority to consider and decide on the petitioner's application. ¶ 1